

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey Graetz	Team: Bias Squad #02	CCRB Case #: 202202547	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 04/21/2022 6:31 PM, Thursday, 04/21/2022 7:11 PM, Tuesday, 04/26/2022 3:23 PM	Location of Incident: Front of § 87(2)(b) Police Service Area 8 stationhouse, 670 Castle Hill Avenue	18 Mo. SOL 10/21/2023	Precinct: 43		
Date/Time CV Reported Thu, 04/21/2022 8:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 04/21/2022 8:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jorge Rodriguez	06410	957094	PSA 8
2. PO Wilson Torres	02027	970900	PSA 8
3. DTS Juan Germanfrias	25455	953903	PSA 8
4. SGT Pivatchai Jetjomlong	04582	936816	PSA 8
5. PO Christopher Pelcher	31890	968703	PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Edwin Garcia	10122	960572	PSA 8
2. PO Miguel Perea	19829	962678	PSA 8
3. SGT Michael Balicki	00875	932291	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . PO Jorge Rodriguez	Abuse: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez arrested § 87(2)(b) unlawfully.	A . Substantiated
B . PO Wilson Torres	Abuse: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Wilson Torres searched § 87(2)(b)	B . Exonerated
C . PO Jorge Rodriguez	Force: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez used a chokehold against § 87(2)(b)	C . Unsubstantiated
D . PO Jorge Rodriguez	Force: Police Officer Jorge Rodriguez used physical force against § 87(2)(b)	D . Exonerated
E . PO Jorge Rodriguez	Force: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez used physical force against § 87(2)(b)	E . Unsubstantiated
F . PO Christopher Pelcher	Discourtesy: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Christopher Pelcher spoke discourteously to Individuals.	F . Substantiated
G . PO Christopher Pelcher	Off. Language: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Christopher Pelcher made remarks to Individuals based upon race.	G . Substantiated

Officer(s)	Allegation	Investigator Recommendation
H . DTS Juan Germanfrias	Discourtesy: On April 21, 2022, in front of § 87(2)(b) and the Police Service Area 8 stationhouse in the Bronx, Police Officer Juan Germanfrias spoke discourteously to § 87(2)(b)	H . Substantiated
I . SGT Pivatchai Jetjomlong	Abuse: On April 21, 2022, in the Police Service Area 8 stationhouse in the Bronx, Sergeant Pivatchai Jetjomlong did not process § 87(2)(b) complaint regarding an officer.	I . Unsubstantiated
J . DTS Juan Germanfrias	Abuse: On April 26, 2022, in front of 670 Castle Hill Avenue in the Bronx, Police Officer Juan Germanfrias refused to provide his shield number to § 87(2)(b)	J . Substantiated
K . DTS Juan Germanfrias	Abuse: On April 26, 2022, in front of 670 Castle Hill Avenue in the Bronx, Police Officer Juan Germanfrias refused to provide his name to § 87(2)(b)	K . Substantiated

Case Summary

On April 22, 2022, § 87(2)(b) filed this complaint with the CCRB via the call processing system (01 BR).

On April 21, 2022, at 6:31 p.m., Police Officer Jorge Rodriguez – accompanied by Police Officer Edwin Garcia, both of PSA8 – ordered § 87(2)(b) to move away from the entrance door at § 87(2)(b) in the Bronx. § 87(2)(b) was recording the officers on his cellphone and refused to move. PO Rodriguez told § 87(2)(b) to clear the entrance or he would give § 87(2)(b) a summons. After telling § 87(2)(b) to move away from the entrance five times in 45 seconds, PO Rodriguez placed § 87(2)(b) under arrest for disorderly conduct, failure to disperse (**Allegation A: Abuse of Authority, substantiated**). Police Officer Wilson Torres of PSA8 patted § 87(2)(b) down before PO Rodriguez placed § 87(2)(b) in a police vehicle (**Allegation B: Abuse of Authority, exonerated**). It is alleged that PO Rodriguez used force to place § 87(2)(b) into the police car, including putting § 87(2)(b) in a chokehold and closing the car door on § 87(2)(b) toes (**Allegation C: Force, unsubstantiated, Allegation D: Force, exonerated, Allegation E: Force, unsubstantiated**). While PO Rodriguez was placing § 87(2)(b) into the police vehicle, Police Officer Christopher Pelcher, also of PSA8, spoke discourteously and used offensive language when talking to a group of teenage civilians watching § 87(2)(b) arrest (**Allegation F: Discourtesy, substantiated; Allegation G: Offensive Language, substantiated**). While transporting § 87(2)(b) to the PSA8 stationhouse with PO Torres, Detective Juan Germanfrias of PSA8 spoke discourteously to § 87(2)(b) (**Allegation H: Discourtesy, substantiated**). At the PSA8 stationhouse, Sergeant Pivatchai Jetjomlong allegedly refused to process § 87(2)(b) CCRB complaint (**Allegation I: Abuse of Authority, unsubstantiated**).

On April 26, 2022, at 3:23 p.m., § 87(2)(b) recognized Det. Germanfrias while recording a vehicle stop in front of 670 Castle Hill Avenue in the Bronx. § 87(2)(b) asked Det. Germanfrias for his name and badge, which Det. Germanfrias refused to provide (**Allegations J-K: Abuse of Authority, substantiated**).

This case was initially assigned to Investigator Adriaan Denbroeder and was reassigned to Investigating Attorney Casey Graetz.

For the April 21st incident, the CCRB obtained body worn camera footage (02-05 BR), cell phone footage from § 87(2)(b) (06 BR), and NYCHA video surveillance footage (07-08 BR).

For the April 26th incident, the CCRB obtained body worn camera footage (09 BR).

Findings and Recommendations

Allegation (A) Abuse of Authority: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez arrested § 87(2)(b) unlawfully.

It is undisputed that § 87(2)(b) was placed under arrest after standing in the doorway of § 87(2)(b) and refusing to comply with PO Rodriguez's orders to move.

§ 87(2)(b) testified that he came to the door of § 87(2)(b) to get some fresh air (10 BR). Upon seeing officers standing outside the door of the building, § 87(2)(b) started to record on his cell phone before opening the building door. § 87(2)(b) also saw 8-9 kids present. § 87(2)(b) did not know any of the kids or speak to them during the incident. § 87(2)(b) held his cell phone in his left hand at his chest and leaned on the building door, holding it open as he stood

outside. PO Rodriguez approached § 87(2)(b) and held the door open and stated that he could hold the door for him. § 87(2)(b) told PO Rodriguez he was capable of doing that himself. § 87(2)(b) asked PO Rodriguez and PO Garcia for their names and shield numbers, which they provided to him. PO Rodriguez told § 87(2)(b) to move from the door because he was blocking the way. PO Rodriguez told § 87(2)(b) he would give him a summons if he did not move, and § 87(2)(b) said “Fine, give me a summons then.” PO Rodriguez repeated his order to move away from the door and § 87(2)(b) refused. PO Rodriguez then said “give me your ID” as he placed § 87(2)(b) into handcuffs. PO Rodriguez then walked § 87(2)(b) to a black unmarked sedan that was in the courtyard area.

PO Rodriguez explained that § 87(2)(b) came to the entrance of § 87(2)(b) and started recording PO Rodriguez and PO Garcia who were having a conversation with a group of young male civilians (11 BR). PO Rodriguez and PO Garcia were only chatting with the group of civilians and were not taking any police action against that group. PO Rodriguez did not have a problem with § 87(2)(b) recording the officers on his cell phone, but § 87(2)(b) was blocking the entrance to the building. One man tried to get into § 87(2)(b) while § 87(2)(b) was standing in the doorway and had to go around § 87(2)(b) to get into the building. PO Rodriguez instructed § 87(2)(b) to get out of the entrance because he was inconveniencing other people. § 87(2)(b) refused to move. PO Rodriguez placed § 87(2)(b) under arrest after § 87(2)(b) ignored three orders to move. § 87(2)(b) could have continued recording the officers if he had stepped out of the doorway. PO Rodriguez explained that the only reason he issued a summons was because § 87(2)(b) was standing in the entryway to the building. Blocking the entrance was both a violation of a NYCHA rule and disorderly conduct. PO Rodriguez testified that the group of young civilians standing outside of § 87(2)(b) was not related to his decision to issue § 87(2)(b) a summons. PO Rodriguez placed § 87(2)(b) under arrest and decided to transport him to the stationhouse rather than giving him a summons there because § 87(2)(b) was not properly identified, the small crowd made it less feasible to write the summons at § 87(2)(b) and § 87(2)(b) appeared hostile.

PO Garcia immediately knew who § 87(2)(b) was when he came to the door because § 87(2)(b) is a “cop watch” who has a YouTube channel and records police activity (19 BR). PO Garcia had not personally interacted with § 87(2)(b) on prior occasions, but he had responded to other officers who were in need of assistance because of § 87(2)(b) once or twice. PO Rodriguez testified that he did not recognize § 87(2)(b) (11 BR). PO Torres recognized § 87(2)(b) when he saw him (12 BR). PO Torres had never interacted with § 87(2)(b) previously, but he had been to scenes where he had seen § 87(2)(b) recording officers. PO Torres asked Det. Germanfrias who § 87(2)(b) was and Det. Germanfrias said § 87(2)(b) is always around recording whenever officers are in the area. PO Torres did not have any conversations with PO Rodriguez or PO Garcia about § 87(2)(b) that day, but he believed they knew who § 87(2)(b) was. PO Torres believed PO Rodriguez and PO Garcia recognized § 87(2)(b) because they had had a “good amount” of interactions with § 87(2)(b). Det. Germanfrias testified that he did not recognize § 87(2)(b) on April 21, 2022 (20 BR).

A NYCHA CCTV camera pointed at the door of § 87(2)(b) captures § 87(2)(b) arrest and the events leading up to it (07 BR). At 27:20 of the video footage from camera § 87(2)(b) § 87(2)(b) PO Rodriguez and PO Garcia can be seen exiting § 87(2)(b) joining PO Torres, Det. Germanfrias, and a group of young Black civilians who are standing outside of the building. 29:35-30:25 of the video captures § 87(2)(b) appearance in the doorway and subsequent arrest by PO Rodriguez. At 29:19 of the video, a male civilian approaches the door and looks in the window. He appears to knock on the door and then walks into the building and past § 87(2)(b) as § 87(2)(b) opens the door.

§ 87(2)(b) cell phone footage, 59 seconds in length, captures § 87(2)(b) opening the door of § 87(2)(b) standing in the doorway, and being placed in handcuffs by PO Rodriguez (06 BR). At 0:01, the civilian walking past § 87(2)(b) into the building can be heard saying “thank you.” § 87(2)(b) reads out PO Rodriguez and PO Garcia’s names and shield numbers. At 0:28, PO Rodriguez tell § 87(2)(b) to clear the entrance so people can walk through. PO Rodriguez then repeatedly tells § 87(2)(b) to clear the entrance or he’ll give § 87(2)(b) a summons. PO Rodriguez tells § 87(2)(b) to clear the entrance five or six times from 0:28 through 0:45, when PO Rodriguez then puts § 87(2)(b) into handcuffs.

PO Rodriguez’s BWC captures § 87(2)(b) appearance and arrest at 0:12-1:29 (02 BR). At 0:14, the male civilian described above as appearing in the NYCHA CCTV footage can be seen pulling open the door to § 87(2)(b) and walking past § 87(2)(b) into the building. § 87(2)(b) holds his phone to his chest and stands in the doorway. The audio of this video starts at 1:00 as PO Rodriguez says “give me your ID” and places § 87(2)(b) in handcuffs. PO Rodriguez says he told § 87(2)(b) to clear the entrance three times, which was a lawful order, and repeatedly states that § 87(2)(b) was blocking the entrance.

The C-Summons issued to § 87(2)(b) on April 21, 2022 (summons #§ 87(2)(b) alleges “at tpo, the undersigned observed the deft in a nycha blg and with intent to cause a disruption gather with two or more others. Deft refused to disperse a lawful order to stop blocking the entrance of the building. RTR” (13 BR). The summons lists a violation of PL 240.20-6 with the description of “discon: refuse lawful order” § 87(2)(b)

Sergeant Michael Balicki of PSA8 completed a Threat, Resistance, Injury Incident (TRI) worksheet to document § 87(2)(b) injury at § 87(2)(b) which is discussed in greater detail below (14 BR). In the TRI’s details of the incident, Sgt. Balicki states PO Rodriguez affected an arrest for “disorderly conduct/refuse to disperse.” The TRI describes PO Rodriguez as addressing “a disorderly group of approximately 8 males in the lobby of the location.” § 87(2)(b) “refused the order” to move from the doorway of the location “and became verbally abusive toward” PO Rodriguez. The TRI states § 87(2)(b) “action did cause the rest of the group to begin to disobey the Officers orders to disperse and to become loud and combative with the Officers causing an unsafe condition.”

PO Rodriguez’s memo book from April 21, 2022, lists C-Summons #§ 87(2)(b) in an entry at 18:34 and includes the comment, “At tpo, officer of record warned the deft to disperse from the entrance of the building because he was blocking it three times and he refused” (17 BR). Although both PO Rodriguez’s memo book and the TRI reference a medical treatment of prisoner form, the investigation received negative results when requesting this form (30 BR).

On August 5, 2022, the undersigned called Bronx criminal court to inquire about status of the summons issued to § 87(2)(b) (15 BR). The case resulting from summons #§ 87(2)(b) was dismissed § 87(2)(b). No information could be provided regarding why the summons was dismissed. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Under New York Penal Law § 240.20(6), one may be guilty of disorderly conduct by congregating with other persons in a public place and refusing to comply with a lawful order of the police to disperse “with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof” (18 BR). A person may also be guilty of disorderly conduct by obstructing pedestrian traffic with the same intent under § 240.20(5).

§ 87(2)(g)

§ 87(2)(b) In addition, PO Rodriguez did not order § 87(2)(b) to “disperse” because PO Rodriguez said § 87(2)(b) could have continued to record as long as he stepped out of the doorway. Sgt. Balicki’s account of what happened in the TRI does not comport with the footage of the incident or with the officers’ testimony. Det. Germanfrias described the group of civilians as cooperative, and PO Rodriguez testified that the officers were chatting with the group and were not taking any law enforcement action against them. § 87(2)(g)

§ 87(2)(b) No one tried to go in or out of the building while § 87(2)(b) stood in the doorway for less than a minute. Far from being obstructed, the only civilian who went around § 87(2)(b) to enter § 87(2)(b) thanked § 87(2)(b) for opening the door for him. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Abuse of Authority: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Wilson Torres searched § 87(2)(b)

It is undisputed that PO Torres frisked § 87(2)(b) after § 87(2)(b) was placed under arrest and searched before he was transported to the PSA8 stationhouse.

§ 87(2)(b) testified that at the police car, PO Torres searched § 87(2)(b) pockets (10 BR). PO Torres touched § 87(2)(b) right pocket, where § 87(2)(b) had a two-inch-long knife and a lighter. Besides the phone, lighter, and knife, § 87(2)(b) did not have anything else in his pockets.

PO Torres testified that he witnessed PO Rodriguez arrest § 87(2)(b) for disorderly conduct. (12 BR). PO Torres believes standing in the doorway and not letting people go in and out of the building is disorderly conduct. PO Torres also noted the reason officers were there was to clear the area so people would not feel threatened as they walked in and out of the building. PO Torres searched § 87(2)(b) before he was placed in the vehicle. PO Torres stood on § 87(2)(b) right side and patted § 87(2)(b) down. PO Torres then placed his hands in the left and right pockets of § 87(2)(b) pants. It is procedure to search anyone who is under arrest and going into a police vehicle to make sure they do not have any weapons or anything that could hurt the civilian or the officers when they are placed in the vehicle. § 87(2)(b) was under arrest and PO Torres searches everyone he arrests.

PO Torres can be seen patting § 87(2)(b) right pants pocket at 1:30-1:35 of PO Rodriguez’s BWC (02 BR). PO Torres can also be seen entering § 87(2)(b) right pant pocket in PO Garcia’s BWC at 1:25-1:34 (03 BR).

A search of an arrestee’s person, incident to a lawful arrest, is an exception to the warrant requirement. *United States v. Robinson*, 414 U.S. 218, 235 (1973) explains, “[a] custodial arrest of a suspect based on probable cause is a reasonable intrusion under the Fourth Amendment; that intrusion being lawful, a search incident to the arrest requires no additional justification. . . . [I]n the

case of a lawful custodial arrest a full search of the person is not only an exception to the warrant requirement of the Fourth Amendment, but is also a ‘reasonable’ search under that Amendment” (21 BR).

NYPD Patrol Guide Procedure 208-03 instructs arresting officers to “immediately field search/frisk prisoner and search adjacent vicinity for weapons, evidence, and/or contraband” (22 BR).

PO Torres witnessed PO Rodriguez arrest § 87(2)(b) § 87(2)(g)

It is therefore recommended that Allegation B be closed as **exonerated**.

Allegation (C) Force: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez used a chokehold against § 87(2)(b)

Allegation (D) Force: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez used physical force against § 87(2)(b)

Allegation (E) Force: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Jorge Rodriguez used physical force against § 87(2)(b)

§ 87(2)(b) alleges that PO Rodriguez pushed § 87(2)(b) into the door of the police car and eventually put § 87(2)(b) into the backseat of the vehicle (10 BR). § 87(2)(b) was not fully in the car, but PO Rodriguez slammed the car door on § 87(2)(b) big toe and index toe. The door closed fully. § 87(2)(b) screamed in pain and PO Rodriguez opened the car door, releasing § 87(2)(b) toes. § 87(2)(b) put his foot inside the vehicle and PO Rodriguez closed the door again. The front of § 87(2)(b) shoe was ripped as a result of being slammed into the door. § 87(2)(b) requested medical attention and an ambulance. § 87(2)(b) received medical attention at the stationhouse. § 87(2)(b) did not complain of restricted breathing or being placed in a chokehold

PO Rodriguez testified that § 87(2)(b) refused to get into the police car at first (11 BR). § 87(2)(b) tensed his body and was yelling (PO Rodriguez could not recall what § 87(2)(b) was yelling about). PO Rodriguez did not push § 87(2)(b) against the car and did not witness any other officer push § 87(2)(b) against the car. PO Rodriguez did not use a chokehold or restrict § 87(2)(b) breathing. PO Rodriguez did not make contact with § 87(2)(b) neck or windpipe. PO Rodriguez used minimum force to put § 87(2)(b) in the vehicle; PO Rodriguez guided § 87(2)(b) into the car and did not push or punch him. PO Rodriguez did not see § 87(2)(b) toe get shut in the door and did not believe the car would have closed if PO Rodriguez had slammed it on § 87(2)(b) foot.

PO Garcia witnessed § 87(2)(b) be guided into the car but did not witness any officer push § 87(2)(b) (19 BR). PO Garcia heard § 87(2)(b) complaining that his toe was shut in the door but did not believe § 87(2)(b) toe could have been shut in the door because the door closed completely which would not have happened if § 87(2)(b) toe had been blocking the door. PO Garcia also remembered § 87(2)(b) jumping up on the car for his phone. PO Garcia did not witness any officer make contact with § 87(2)(b) neck or restrict § 87(2)(b) breathing.

Det. Germanfrias heard § 87(2)(b) complaining about something but did not see his toe be shut in the door of the police car (20 BR). Det. Germanfrias did not recall any force being used to place § 87(2)(b) into the vehicle. Det. Germanfrias did not witness any officer use a chokehold or

restrict § 87(2)(b) breathing in any way or see an officer make contact with § 87(2)(b) neck or windpipe.

The force used to place § 87(2)(b) into the police vehicle is visible in PO Garcia's BWC from 2:44-3:15 (03 BR). PO Rodriguez has one hand on § 87(2)(b) arm and the other on § 87(2)(b) left shoulder and appears to be trying to direct him into the car as § 87(2)(b) asks for his property. At 2:54, § 87(2)(b) appears to step on the guard of the car, towards the direction of his phone that is sitting on the roof of the car. § 87(2)(b) upper body is on the roof of the car with his hip/pelvis in a wedge against the car door and the body of the car. PO Rodriguez appears to pull § 87(2)(b) back off the car and PO Torres has a hand on § 87(2)(b) right shoulder. At 3:03, PO Rodriguez has his hand on § 87(2)(b) right shoulder near § 87(2)(b) neck, and appears to try to push down on § 87(2)(b) shoulder area. At 3:04, PO Rodriguez's forearm goes in front of § 87(2)(b) neck. PO Rodriguez then returns to grabbing § 87(2)(b) shoulder. PO Rodriguez grabs § 87(2)(b) left leg and places it inside the car. At 3:06 PO Rodriguez places the rest of § 87(2)(b) body into the car. At 3:09, PO Rodriguez appears to close the car door. § 87(2)(b) screams "AH MY TOE" and states that he needs medical. PO Rodriguez opens the car door and closes it again.

The TRI states § 87(2)(b) initially refused to get into the rear of the police vehicle (14 BR). The TRI explains § 87(2)(b) "complain[ed] of pain to his right toe stating it was slammed in the door" after PO Rodriguez closed the car door. Sgt. Balicki was on scene and witnessed the interaction, and states, "[t]he vehicle door was closed with the subject[']s foot inside of the RMP." EMS Medical attention was given inside of the PSA8 holding cells, at which time Sgt. Balicki "observe[d] no visible injury to § 87(2)(b) toe nor was medical attention administered by the EMS unit." Sgt. Balicki found "no evidence of injury" to § 87(2)(b) nor any wrongdoing on the part of PO Rodriguez "based on the observations made on scene by the undersigned, a review of the Officers BWC, [and] the treatment of the subject by medical personnel at the command."

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (23 BR). In all circumstances, any application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In officers' use of force, and in a determination of reasonableness of that force, multiple factors are considered including the nature and severity of the crime/circumstances, actions taken by the subject and the duration of those actions, immediacy of the perceived threat or harm to any party, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, physical condition and age of the subject in comparison to the MOS, subject's violent history, if known, presence of hostile crowd or agitators, and any stimulant or narcotic use that may affect pain tolerance or the likelihood of violence.

NYPD Patrol Guide Procedure 221-01 prohibits members of the service to use a chokehold at any time (23 BR). A chokehold shall include, but is not limited to, any pressure to the throat, carotid artery, or windpipe, which may prevent or hinder breathing or reduce intake of air or blood flow.

Although BWC footage shows PO Rodriguez's arm go in front of § 87(2)(b) neck for a couple of seconds, it is unclear if any pressure was applied to § 87(2)(b) neck. § 87(2)(b) did not complain of restricted breathing or being placed in a chokehold, and the BWC footage does not depict § 87(2)(b) making a physical reaction to PO Rodriguez's action. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

PO Rodriguez used some physical force to place § 87(2)(b) into the police car. This force included grappling with § 87(2)(b) and lifting his leg to place him into the police car. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **exonerated**.

§ 87(2)(b) also alleged that PO Rodriguez slammed the car door on his toes. All officers deny seeing § 87(2)(b) toe be shut in the car door. The investigation was unable to acquire a Medical Treatment of Prisoner Form, photographs of § 87(2)(b) toe, § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation (F) Discourtesy: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Christopher Pelcher spoke discourteously to Individuals.

Allegation (G) Offensive Language: On April 21, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Christopher Pelcher made remarks to Individuals based upon race.

It is undisputed that PO Pelcher, Sgt. Balicki, and Police Officer Miguel Perea, all of PSA8, arrived at § 87(2)(b) while PO Rodriguez was placing § 87(2)(b) into the police vehicle.

PO Pelcher testified that he arrived on the scene to help the arresting officers (24 BR). PO Pelcher walked toward § 87(2)(b) as PO Rodriguez was walking § 87(2)(b) towards the middle of the development where the police vehicle was. PO Pelcher could not see anything other than § 87(2)(b) being put in the car. PO Pelcher could not describe § 87(2)(b) and did not get a good look at him; PO Pelcher could only see § 87(2)(b) hair as § 87(2)(b) was being put in the police car. PO Pelcher quickly turned his back to § 87(2)(b) and the police vehicle and talked with a crowd of 5-10 other civilians during most of the incident. PO Pelcher did not remember specific statements he made to the civilians, but he believed he said “he’s acting like an animal, he’s acting crazy” in reference to § 87(2)(b) when civilians asked PO Pelcher why or what was happening. PO Pelcher could hear § 87(2)(b) screaming and kicking the inside of the car door even though the car’s windows were up. This is what he was referring to when he said § 87(2)(b) was acting like an animal and acting crazy. PO Pelcher did not remember what § 87(2)(b) was screaming about. PO Pelcher had never interacted with § 87(2)(b) and was not referring to his perceived mental health when saying § 87(2)(b) was “acting crazy.” PO Pelcher was not referring to § 87(2)(b) race or ethnicity when he said § 87(2)(b) was “acting like an animal.”

At 2:12 of PO Pelcher’s BWC, a civilian says “yo they doing my son dirty though” and PO Pelcher responds “cause he’s acting like an animal, he’s acting crazy bro” (04 BR). At 0:30-0:38 of the BWC footage, PO Pelcher has clear view of § 87(2)(b) but PO Pelcher has his back to § 87(2)(b) for most of the remaining video. At 1:31, PO Pelcher approaches § 87(2)(b) where he remains with a group of civilians about 20 feet away from the police vehicle. PO Pelcher appears to look back at the car a couple of time from this distance. When PO Pelcher returns to the police vehicle at 3:12, § 87(2)(b) is in the car and not visible.

NYPD Patrol Guide Procedure 200-02 requires officers to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy,

professionalism, and respect (26 BR). Furthermore, officers should not use discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability, per NYPD Administrative Guide Procedure 304-06 (25 BR).

Under DAO-DCT Case Number 2014-12026, a police officer's use of offensive language, unlike discourteous language, is "inexcusable under any circumstances," even if the officer is in a stressful enforcement situation or interacting with a civilian who is directing harsh language at the officer (31 BR).

Per the National Education Association (32 BR), the word animal has a history of dehumanizing people of color. Legal scholarship has also identified this historical and cultural phenomenon. A 2020 law review article discusses how "creating this divide between animalistic other and the white majority has historically led to shaping the perceptions of people of color" and how this "rhetorical strategy plays an important role in the continued oppression of immigrants." The Rise of Zero Tolerance and the Demise of Family, 36 Ga. St. U.L. Rev. 287 (33 BR). Almost 30 years ago, the article Racial Imagery in Criminal Cases, 67 Tul. L. Rev. 1739 (34 BR), advocated for a "racial imagery shield law" and argued that "where any comparisons to animals of any kind are made . . . racial imagery will be presumed." Given the context of how comparisons to animals has been used to dehumanize people of color, comparing a person of color to an "animal" is offensive language.

The word "crazy," while widely used in common parlance, has also long been used like words such as "psycho" and "retarded" to give negative value, demean, and stigmatize those who have a mental or developmental disability or those who are otherwise neurodivergent. The Disability Language Style Guide published by the National Center on Disability and Journalism, housed at the Walter Cronkite School of Journalism and Mass Communication at Arizona State University, groups "crazy" with "loony/mad/psycho/nuts/deranged" and recommends journalists "[d]o not use these words, particularly when reporting on mental illness" because "[t]hese words were once commonly used to describe people with mental illness but are now considered offensive. They are still used in a variety of contexts but should be avoided." (35 BR).

PO Pelcher described § 87(2)(b) as "acting like an animal" and "acting crazy" to a group of young Black male civilians. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that Allegations F-G be closed as **substantiated**.

Allegation (H) Discourtesy: On April 21, 2022, in front of § 87(2)(b) and the Police Service Area 8 stationhouse in the Bronx, Police Officer Juan Germanfrias spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleges that while being transported to the PSA8 stationhouse, Det. Germanfrias told § 87(2)(b) "I don't even wanna deal with you, you stink." § 87(2)(b) found this very humiliating (10 BR). § 87(2)(b) also alleges that Det. Germanfrias told him to "stop faking it" when he exited the police car and limped towards the PSA stationhouse.

Det. Germanfrias did not remember conversations had while transporting § 87(2)(b) to the stationhouse but believed he said something like “I’m also going to get you a shower because it smells really bad in here” (20 BR). Det. Germanfrias said that because § 87(2)(b) smelled bad. Det. Germanfrias did not remember any other context of telling § 87(2)(b) that he had a bad smell. Det. Germanfrias did not remember seeing § 87(2)(b) limp while walking or telling § 87(2)(b) to “stop faking it” while § 87(2)(b) was limping into the stationhouse. PO Torres did not hear an officer tell § 87(2)(b) to “stop faking it” as § 87(2)(b) limped toward the stationhouse (12 BR).

At 5:33-5:46 of PO Torres’s BWC, Det. Germanfrias can be heard saying, “Okay, I’m going to get you a lawyer. I’m also going to get you a shower cause it smells really bad in here” in response to § 87(2)(b) repeatedly stating that he wanted a lawyer (05 BR). At 14:18-14:48 of the same video, Det. Germanfrias takes § 87(2)(b) out of the police car and walks him to the station house. PO Torres retrieves items from the car and walks about 10 feet behind Det. Germanfrias and § 87(2)(b). Det. Germanfrias cannot be heard saying anything.

NYPD Patrol Guide Procedure 200-02 requires officers to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect (26 BR).

§ 87(2)(g)
§ 87(2)(b) Det. Germanfrias did tell § 87(2)(b) that he was “going to get § 87(2)(b) a shower cause it smells really bad.”
§ 87(2)(g)
§ 87(2)(b) It is therefore recommended that **Allegation H** be closed as **substantiated**.

Allegation (I) Abuse of Authority: On April 21, 2022, in the Police Service Area 8 stationhouse in the Bronx, Sergeant Pivatchai Jetjomlong did not process § 87(2)(b) complaint regarding an officer.

§ 87(2)(b) testified that when he was released from the PSA8 station house, he asked the desk officer – Sergeant Pivatchai Jetjomlong, now of FTU 25 – for a CCRB complaint form and how to request BWC footage through a FOIL request (10 BR). Sgt. Jetjomlong stated that § 87(2)(b) would have to call the CCRB because there were no complaint forms at the stationhouse. Sgt. Jetjomlong allegedly stated, “We don’t do that here.” § 87(2)(b) did not ultimately make a complaint that day.

Sgt. Jetjomlong denies that § 87(2)(b) ever requested to file a complaint during their three interactions at the PSA8 stationhouse on April 21, 2022 (28 BR). When § 87(2)(b) was first brought into the stationhouse, he was upset and told Sgt. Jetjomlong he believed he was wrongfully arrested. Sgt. Jetjomlong told § 87(2)(b) that he would speak to him later. Sgt. Jetjomlong did not speak with § 87(2)(b) later about his concerns that the arrest was wrongful, but explained to § 87(2)(b) that he was just getting a disorderly conduct summons. Sgt. Jetjomlong did not understand § 87(2)(b) to be requesting to file a complaint against an officer. After § 87(2)(b) was taken to a cell, he yelled for a supervisor. Sgt. Jetjomlong went to the cell and told § 87(2)(b) to sit down and wait to get the summons. § 87(2)(b) did not request to file a complaint during this interaction. When § 87(2)(b) was released from the station house, Sgt. Jetjomlong told § 87(2)(b) he would have to go to court for his summons. Sgt. Jetjomlong did not have any further conversation with § 87(2)(b) about § 87(2)(b) arrest or the conduct of the officers. § 87(2)(b) did not request to file a complaint during this interaction.

The first of Sgt. Jetjomlong's three interactions with § 87(2)(b) is captured in PO Torres's BWC from 15:32-17:27 (05 BR). § 87(2)(b) asks Sgt. Jetjomlong if PO Rodriguez arresting him after demanding he move three times was illegal. Sgt. Jetjomlong replied that if an officer asks § 87(2)(b) to move, he has to move. § 87(2)(b) says there was no law that he had to move, and Sgt. Jetjomlong repeatedly tells § 87(2)(b) to give him a minute. Sgt. Jetjomlong then takes § 87(2)(b) pedigree information.

The PSA8 command log for April 21, 2022, includes an entry documenting § 87(2)(b) arrest shortly before 19:00 (44 BR). The command log does not include an entry related to § 87(2)(b) attempting to file a complaint.

NYPD Patrol Guide Procedure 207-28 requires that civilians be allowed to file complaints against officers in person at the stationhouse (27 BR). Officers must ensure that the civilian receives a complaint form, and the civilian should be interviewed if they wish to file the complaint at that time. If the civilian does not want to file the complaint immediately, officers must still provide a complaint form and the telephone number of the CCRB Intake Unit and must advise the civilian that they can file their complaint in person, over the phone, or by mail with any patrol precinct, PSA, transit district, traffic unit, the IAB, or any other office of the Department. In addition, officers who encounter a civilian at the stationhouse who asks to make a complaint against officers or merely requests a complaint form must also have a Command Log entry made. Such entry must include the civilian's name and address, if provided, their physical description, and any other pertinent information including the identity of the MOS complained of, if known.

§ 87(2)(b) alleges that he asked for a CCRB complaint form, but Sgt. Jetjomlong denies § 87(2)(b) ever requested to file a complaint. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegation I** be closed as **unsubstantiated**.

Allegation (J) Abuse of Authority: On April 26, 2022, in front of 670 Castle Hill Avenue in the Bronx, Police Officer Juan Germanfrias refused to provide his shield number to § 87(2)(b).

Allegation (K) Abuse of Authority: On April 26, 2022, in front of 670 Castle Hill Avenue in the Bronx, Police Officer Juan Germanfrias refused to provide his name to § 87(2)(b).

It is undisputed that on April 26, 2022, five days after § 87(2)(b) arrest, § 87(2)(b) recorded a vehicle stop conducted by PO Torres, Det. Germanfrias, and Sergeant Victor Charles of PSA8.

§ 87(2)(b) alleges that he asked Det. Germanfrias for his shield number while Det. Germanfrias was conducting a vehicle stop (10 BR). Det. Germanfrias responded "you got it already, you got it already." § 87(2)(b) asked again but Det. Germanfrias did not give it to him.

Det. Germanfrias did not recall § 87(2)(b) asking for his name and shield number (20 BR). After watching BWC footage from April 26, Det. Germanfrias stated it was possible that he said "you've got it already" after § 87(2)(b) asked for his name and shield. Det. Germanfrias was certain § 87(2)(b) had his name and shield number from previous interactions and believed § 87(2)(b) was

trying to incite something so that he could file a lawsuit. Det. Germanfrias gave § 87(2)(b) his name and shield number on April 21, 2022, when § 87(2)(b) was placed under arrest. Det. Germanfrias did not remember at which point during his interactions with § 87(2)(b) on April 21, 2022 he gave § 87(2)(b) his name and shield number.

Sgt. Charles's BWC footage from April 26, 2022, captures § 87(2)(b) asking for Det. Germanfrias's name and badge at 2:52-3:10 (09 BR). At 2:54, § 87(2)(b) can be heard saying "yo, what's that officer's name? give me the badge." Sgt. Charles laughs as he opens the car door. Det. Germanfrias, who is standing next to the open driver door, says, "what?" At 2:58, § 87(2)(b) can be seen pointing at Det. Germanfrias and says, "I need your name and badge." At 3:02, Det. Germanfrias says "You got it already. You got it." At 3:06, § 87(2)(b) can be seen pointing his finger toward the front of the car, likely at Det. Germanfrias, and can be heard saying "No I don't, I don't know it." Sgt. Charles says "yes, yes" while § 87(2)(b) says something unintelligible including "identifying."

NYPD Administrative Guide Procedure 304-11 (29 BR) requires MOS to "courteously and clearly state [their] rank, name, shield number and command, or otherwise provide them, to anyone who requests [them] to do so."

§ 87(2)(b) asked for Det. Germanfrias's name and shield number and Det. Germanfrias refused to provide that information. § 87(2)(g)

It is therefore recommended that **Allegations J-K** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Rodriguez has been a member of service for 8 years and has been a subject in 9 other CCRB complaints and 22 other allegations, of which one has been substantiated (37 BR):
 - 202006283 involved a substantiated allegation of a stop against PO Rodriguez. The Board recommended Command Discipline A and the NYPD imposed no disciplinary action.
- Det. Germanfrias has been a member of service for 9 years and has been a subject in 5 other CCRB complaints and 14 other allegations, of which four have been substantiated (38 BR):
 - 202006901 involved a substantiated allegation of a failure to provide RTKA card against Det. Germanfrias. The Board recommended Command Discipline A and the NYPD imposed no disciplinary action.
 - 202006265 involved three substantiated allegations of failure to provide RTKA card against Det. Germanfrias. The Board recommended formalized training and the NYPD has not yet imposed discipline.

- Sgt. Jetjomlong has been a member of service for 17 years and has been a subject in 5 other CCRB complaints and 7 other allegations, none of which were substantiated (**41 BR**). § 87(2)(g)
- PO Torres has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject (**39 BR**).
- PO Pelcher has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject (**40 BR**).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 25, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**42 BR**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator:	<u>/s/ Casey Graetz</u>	<u>Inv. Atty. Casey Graetz</u>	<u>10/31/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Tessa Yesselman</u>	<u>IM Tessa Yesselman</u>	<u>11/07/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u>/s/ Bianca Victoria Scott</u>	<u>Bianca Victoria Scott, Dep Dir</u>	<u>2/13/2023</u>
	Signature	Print Title & Name	Date